

An Act

ENROLLED SENATE
BILL NO. 563

By: Haste of the Senate

and

Staires of the House

An Act relating to the county planning commission; amending 19 O.S. 2021, Section 868.2, which relates to the personnel of the county planning commission; establishing that the chair of the board of county commissioners or their designee shall be a member of the county planning commission; providing process for appointing remaining members; establishing terms of two years; amending 19 O.S. 2021, Section 868.3, which relates to personnel and procedure of the county board of adjustment; requiring the county board of adjustment to be composed of three, five, or seven appointed resident property owners of the county; providing process for the appointment of members; establishing terms of members; permitting the board of county commissioners to retain private legal counsel to represent and advise the county board of adjustment; clarifying certain actions adopted or enacted pursuant to certain provisions shall remain in full force until amended, revised, or replaced; providing for codification; and declaring an emergency.

SUBJECT: Boards of county commissioners

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 19 O.S. 2021, Section 868.2, is amended to read as follows:

Section 868.2. The county planning commission shall be composed of seven (7) members to be appointed by the board of county

commissioners. One member shall be ~~a member~~ the chair of the board of county commissioners or their designee and the remaining six members shall be ~~residents of the unincorporated areas of the county~~ appointed by the board of county commissioners, with each county commissioner nominating two members. Each such nominee shall reside within the district represented by the county commissioner making the nomination. The term of the chair of the county commissioner member ~~or their designee~~ shall be coextensive with ~~his~~ their term ~~of official office in that position,~~ and all other members shall be appointed for terms of ~~six (6)~~ two (2) years, except that such terms shall be made overlapping and the respective terms of those first appointed may be less than ~~six (6)~~ two (2) years. All members shall serve as such without compensation. Members may be removed by the board of county commissioners for cause after a public hearing held for that purpose and vacancies shall be filled by additional appointments.

SECTION 2. AMENDATORY 19 O.S. 2021, Section 868.3, is amended to read as follows:

Section 868.3. A. The county board of adjustment shall be composed of three (3), five (5), or seven (7) resident property owners of the county to be appointed by the board of county commissioners. ~~At least one member shall be a resident of the county seat of such county and at least one member shall be duly licensed as an attorney in the State of Oklahoma.~~ Members shall be nominated by the county commissioners in as nearly equal number as practicable, and when the total number of authorized positions cannot be divided equally among the three county commissioners, the remaining nomination or nominations shall be allocated by the board of county commissioners.

B. The term of each member shall be ~~three (3)~~ two (2) years except that the terms shall be overlapping and the ~~membership of the board first appointed shall be for terms of one (1), two (2) and three (3) years, respectively~~ respective terms of those first appointed may be less than two (2) years. The board of county commissioners is hereby authorized to fill vacancies which may occur in the board and to appoint a substitute or substitutes to serve in a particular case in which a member or members shall certify ~~his~~ their disqualification. Members may be removed by the board of county commissioners for cause after a public hearing held for that

purpose, and vacancies shall be filled by additional appointments. All members of the county board of adjustment shall serve as such without compensation.

C. The board of county commissioners may retain private legal counsel to represent and advise the county board of adjustment in the performance of its official duties.

D. The county board of adjustment shall elect its own chairman and shall adopt rules of procedure consistent with the provisions of the zoning regulations and the provisions of this act. The chairman, or in his absence the acting chairman, may administer oaths and compel the attendance of witnesses. All hearings of the county board of adjustment shall be open to the public, and minutes shall be kept of all proceedings and official actions, which minutes shall be filed in the office of the board and shall be a public record. The board of adjustment shall fix a reasonable time for the hearing of any appeal and every appeal shall be heard within sixty (60) days from the date of filing.

E. Notice of hearings before the county board of adjustment shall be given by at least one (1) publication in a newspaper of general circulation in the county and by mail to the record owners of lands contiguous to the affected area at least fifteen (15) days prior to the date of such hearing.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 868.23 of Title 19, unless there is created a duplication in numbering, reads as follows:

On and after the date a county becomes subject to Sections 868.1 et seq. of Title 19 of the Oklahoma Statutes, all comprehensive plans, master plans, zoning regulations, floodplain regulations, subdivision regulations, resolutions, ordinances, codes, and all amendments, supplements, and modifications thereto, previously adopted or enacted pursuant to any other provision of Section 863.1 through Section 869.7 of Title 19 of the Oklahoma Statutes, and all actions taken thereunder, are hereby validated, ratified, and continued in full force and effect as if adopted under the authority of Sections 868.1 et seq. of Title 19 of the Oklahoma Statutes, until amended, revised, or replaced by appropriate official action taken in accordance with such sections.

SECTION 4. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____